

RX/11 - 2025-05/

LUMBER SUPPLY CONTRACT



KNOW ALL MEN BY THESE PRESENTS:

This contract is made and entered into by and between **JOEL OPITAN**, of legal age, Filipino, Married and a resident of Brgy. Pacuan, Lanuza, Surigao del Sur, Philippines, hereinafter known and referred to as the **SUPPLIER**.

and

CC LUMBER TRADING, a firm duly organized and existing by virtue of the laws of the Republic of the Philippines represented by **MARIALIZA T. CUSTODIO**, with postal address at Brgy. Bunga, Lanuza Surigao del Sur, Philippines herein referred to as the **BUYER**.

-WITNESSETH-

WHEREAS, the **SUPPLIER** is a private tree planters duly registered by the DENR with PTPR No. **PTPR NO. SDS13-23-07-0010** located in Brgy. Pakwan, Lanuza, Surigao del Sur issued by the Department of Environment and Natural Resources (DENR) on July 3, 2023 and has the capacity to supply as indicated below, to wit:

Inventoried Volume (cu.m.)		Previous Commitments (cu.m.)	Available Balance (cu.m.)
Falcata	31.37	-	31.37
Gmelina	61.19	-	61.19
Mangium	143.68	49.34	94.34
TOTAL	236.24	49.34	186.9

WHEREAS, the **BUYER** is a Lumber Dealer with Certificate of Registration as Lumber Dealer No. **LD-R13-SDS-12-04162025** duly issued by the DENR Caraga on April 16, 2024 to expire on April 16, 2025 and has not violated pertinent DENR laws, rules and regulations.

WHEREAS, the **SUPPLIER** is willing to sell and supply chainsaw-cut lumber with total volume of 70.87 cubic meters/15,005.36 board feet: 15 cu.m/3,180 bd.ft of Falcata: 50 cu.m/10,600 bd.ft of Gmelina: 5.78 cu.m/1,225.36 of Mangium as may be required or necessary for the latter's Lumber Dealer business and the **BUYER** is willing to purchase from the supplier such available volume.

NOW, THEREFORE, for and in consideration of the premises mentioned hereinabove, the parties here agree to enter into this **LUMBER SUPPLY CONTRACT** where the supplier shall sell and deliver to the **BUYER** chainsaw-cut lumber from its approved PTPR under the following terms and conditions.

1. That the deliveries of chainsaw-cut lumber under this contract shall be covered by the necessary supporting documents from the DENR and other Government agencies certifying as to the legality of the source;
2. That the quality of chainsaw-cut lumber to be supplied shall be scaled by the **SUPPLIER** at the area for the determination of final grading as basis for the pricing and same shall be graded and rescaled by the **BUYER** upon delivery;
3. The **SUPPLIER** shall not be held liable and/or responsible for any omission and/or delay in the performance of its obligation under this contract caused by or arising from **FORCE MAJEURE** or **ACTS OF GOD** and other fortuitous events.

THAT both parties further agreed that:

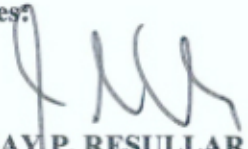
1. The approving officer shall be free from any liability, criminal and/or otherwise in the event of breach of contract between the two (2) contracting parties;
2. The DENR shall not be made a party of any breach arising from non-performance of the obligations stipulated in the contract by any of the contracting parties.
3. Any proven violations against pertinent DENR laws, rules and regulations committed by either of the contracting parties shall be sufficient cause for the cancellation of this contract.
4. This agreement shall be subject to other pertinent DENR laws, rules and regulations governing that matter.
5. The validity of this agreement shall be one (1) year effective immediately upon its approval by the DENR and automatically deemed earlier terminated when the volume contracted are exhausted, whichever comes first. It is being understood that either party may withdraw from it and declare it cancelled and of no effect within thirty (30) days written notice on the other party and that the DENR Region 13 shall also be notified.

IN WITNESS WHEREOF, the parties have hereunto affixed there signatures this day of 14 MAR 2025, 2025 at CANTILAN Surigao del Sur, Mindanao, Philippines.


JOEL OPITAN
 PTPR Holder/Supplier

CC LUMBER TRADING
 Position (Authorized Representative)/Buyer
 By:


MARIALIZA CUSTODIO

Witnesses:

GAY P. RESULLAR
 OIC, CENR Officer


ADELFO R. DEENGAS, JR.
 OIC, PENR Officer

Approved by:

MARITES M. OCAMPO
 OIC, Regional Executive Director



RXIII-2025-051

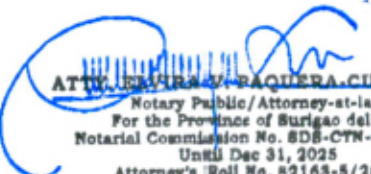
Republic of the Philippines
Province of Surigao del Sur : S.S
Municipality/City of CANTILAN

BEFORE ME, at the _____, Philippines this 14 MAR 2025 day of _____, 2025 personally appeared _____ with Community Tax Certificate No. _____ issued on _____ at _____ and _____ with Community Tax Certificate No. _____ issued on _____ at _____ both known to me that the same is their free and voluntary deed.

This instrument consists of _____ pages including this page wherein acknowledgment is written and has been signed by the parties and their instruments witness.

WITNESS MY HAND AND SEAL at the place and date first above written.

Doc No. 187
Page No. 38
Book No. VIII
Series of 2025


ATTY. EMIRA V. BAQUERA-CHARTERO
Notary Public/Attorney-at-law
For the Province of Surigao del Sur
Notarial Commission No. SDB-CTM-01-2024
Until Dec 31, 2025
Attorney's Roll No. 82163-5/2022
IBP No. 369991, Surigao del Sur
PTR No. 0973681, Tandag City, SDB
MCLE Compliance No.: VIII-0008335/ 4-14-2025





Republic of the Philippines
Department of Environment and Natural Resources
COMMUNITY ENVIRONMENT & NATURAL RESOURCES OFFICE
CENRO R13-D2, Cantilan, Surigao del Sur
Tel. No. (086) 212-5222

2 37378

PRIVATE TREE PLANTATION REGISTRATION

No. SDS13-23-07-0010



Owner's Basic Information

Name	Joel Opitan
Permanent Address	Pakwan, Lanuza, Surigao del Sur
Contact No.	09103390844
Email Address	None

Tree Plantation Location

OCT/TCT No.	Lot No. 38		
Barangay/s	Pakwan		
Municipality/ies	Lanuza		
Province	Surigao del Sur		
Total Lot Area	3.3606	Total Lot Area Devoted to Plantation	3.3606
Tree Species to be Planted	Falcata, Mangium, Gmelina		

Attachments

	Letter of Application
	Certified True Copy of OCT/TCT, Judicial Title, CLOA or Tax Declared Alienable and Disposable Lands
	Data on the Number of Seedlings planted, species and area planted
	Endorsement from concerned LGU interposing no objection to the cutting of trees

I hereby certify that the above information are true and correct.


JOEL OPITAN
Signature over Printed Name of Applicant

June 13, 2023
Date Submitted

I hereby certify that the above Information are verified and the Private Tree Plantation registration is approved:


GAY P. RESULLAR
Signature over Printed Name of CENR Officer

July 3, 2023
Date Approved

received by:

JOEL OPITAN
7/3/23

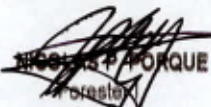
STAND AND STOCK TABLE OF INVENTORIED FALCATA, GMELINA AND MANGIUM TREES

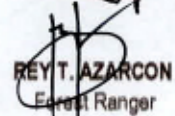
LICENSED/PERMITTE: JOEL OPITAN
LOCATION : PAKWAN, LANUZA, SDS
BLOCK : N/A

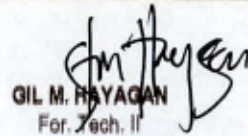
SAMPLING INTENSITY: 100%
AREA INVENTORIED : 3.3606 has.

SPECIES GROUP	Sapi and Regen	DIAMETER RANGE												VOLUME	
		20 cm		30 cm		40 cm		50 cm		60 cm		70 cm		TOTAL	
		T	V (cu.m)	T	V (cu.m)	T	V (cu.m)	T	V (cu.m)	T	V (cu.m)	T	V (cu.m)	T	V (cu.m)
NON-DIPTEROCARP															
FALCATA		2	0.53	26	12.12	21	16.29	2	2.43					51	31.37
MANGIUM		20	4.65	103	45.54	102	80.54	10	12.95					235	143.68
GMELINA		3	0.76	38	16.85	52	41.13	2	2.45					95	61.19
GRAND TOTAL=		25	5.94	167	74.51	175	137.96	14	17.83	-	-			381	236.24

Prepared by:


JESSIE P. PORQUE
For. Tech. II

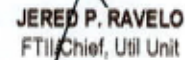

REY T. AZARCON
Forest Ranger


GIL M. HAYAGAN
For. Tech. II


COLUMBUS G. HERNANDEZ
Forest Ranger


ESSALOU S. ESPIRITU
For. Tech. II

SUBSCRIBED AND SWORN to before me this 30th day of June 2023 at CENRO Cantilan, Surigao del Sur.


JERED P. RAVELO
FTII Chief, Util Unit

LUMBER SUPPLY CONTRACT



KNOW ALL MEN BY THESE PRESENTS:

This contract is made and entered into by and between **EDOY MABIDO**, of legal age, Filipino, Married and a resident of Brgy. Pacuan, Lanuza, Surigao del Sur, Philippines, hereinafter known and referred to as the **SUPPLIER**.

and

DATE: **MAR 21 2025**
BY: **GABRIEL G. BAGOT**
Administrative officer III
DOC. NO. **71174347-20**

CC LUMBER TRADING, a firm duly organized and existing by virtue of the laws of the Republic of the Philippines represented by **MARIALIZA T. CUSTODIO**, with postal address at Brgy. Bunga, Lanuza Surigao del Sur, Philippines herein referred to as the **BUYER**.

WITNESSETH

WHEREAS, the **SUPPLIER** is a holder of **Private Land Timber Permit (PLTP) No. RXIII-03-2025** issued by the Department of Environment and Natural Resources-Regional Office 13 with a total harvestable volume of **597.919** cubic meters located in Brgy. Pakwan, Lanuza, Surigao del Sur, and that as a permittee, has not committed any violation against DENR laws, rules, and regulations and has the capacity to supply as indicated below:

Allowable Volume (cu.m.)		Previous Commitments (cu.m.)	Available Balance (cu.m.)
Phil. Mahogany	316.54	200.0	116.54
Manggachapui Group	2.14	N/A	2.14
Apitong Group	9.48	N/A	9.48
Nato Group	8.55	N/A	8.55
F/C Hardwood	158.11	100.0	58.11
Premium Species	9.78	N/A	9.78
Lesser Used Species	56.04	N/A	56.04
Pulp and Matchwood Species	37.29	N/A	37.29
TOTAL	597.919	300.0	297.919

WHEREAS, the **BUYER** is a Lumber Dealer with Certificate of Registration as Lumber Dealer No. **LD-R13-SDS-12-04162025** duly issued by the DENR Caraga on April 16, 2024 to expire on April 16, 2025 and has not violated pertinent DENR laws, rules and regulations.

WHEREAS, the **SUPPLIER** is willing to sell and supply chainsaw-cut lumber with total volume of **97.919 cubic meters/33,214.10 board feet; 41.879 cubic meters/ 14,205.40 board feet of Philippine Mahogany Group (Red Lauan); 56.04 cubic meters/19,012.20 board feet of Lesser Used Species** (Anangilan - 1.31cu.m/555.44 bd. ft., Balobo - 0.40 cu.m/169.60 bd. ft., Bok-bok - 3.03cu.m/1,284.72 bd.ft., Cabcao - 2.93cu.m/1,242.32 bd.ft., Hagimit - 0.62cu.m/262.88 bd.ft., Hindang - 9.65cu.m/4,091.60 bd.ft., Kupang - 0.20cu.m/84.8 bd.ft., Lanipga - 4.45cu.m/1,886.8 bd.ft., Magotambis - 5.91cu.m/2,505.84 bd.ft., Mala-mala - 0.05 cu.m./21.2 bd.ft., Pili-pili - 1.13cu.m/479.12 bd.ft., Saguimsim - 19.78cu.m/8,386.72 bd.ft., Tibig - 0.93cu.m/394.32 bd.ft., Togop - 3.84 cu.m./1,628.16 bd.ft., Wakatan - 1.69cu.m/716.56 bd.ft., Wild rambutan - 0.13cu.m/55.12 bd.ft.) as may be required or necessary for the latter's Lumber Dealer business and the **BUYER** is willing to purchase from the supplier such available volume.

NOW, THEREFORE, for and in consideration of the premises mentioned hereinabove, the parties here agree to enter into this **LUMBER SUPPLY CONTRACT** where the supplier shall sell and deliver to the **BUYER** chainsaw-cut lumber from its approved PLTP under the following terms and conditions.

1. That the deliveries of chainsaw-cut lumber under this contract shall be covered by the necessary supporting documents from the DENR and other Government agencies certifying as to the legality of the source;
2. That the deliveries of logs derived from the cutting area shall be in an Open Cargo/Truck and shall be displayed visibly with a tarpaulin/sign board on the front and back of the conveyance indicating the name of the permittee, PLTP Number, date issued and expiry and other important information;

3. That the quality of chainsaw-cut lumber to be supplied shall be scaled by the SUPPLIER at the area for the determination of final grading as basis for the pricing and same shall be graded and rescaled by the BUYER upon delivery;
4. The SUPPLIER shall not be held liable and/or responsible for any omission and/or delay in the performance of its obligation under this contract caused by or arising from FORCE MAJEURE or ACTS OF GOD and other fortuitous events.

THAT both parties further agreed that:

1. The approving officer shall be free from any liability, criminal and/or otherwise in the event of breach of contract between the two (2) contracting parties;
2. The DENR shall not be made a party of any breach arising from non-performance of the obligations stipulated in the contract by any of the contracting parties.
3. Any proven violations against pertinent DENR laws, rules and regulations committed by either of the contracting parties shall be sufficient cause for the cancellation of this contract.
4. This agreement shall be subject to other pertinent DENR laws, rules and regulations governing that matter.
5. The validity of this agreement shall be co-terminus with the Supplier's PLTP, effective immediately upon its approval by the DENR and automatically deemed earlier terminated when the volume contracted are exhausted, whichever comes first. It is being understood that either party may withdraw from it and declare it cancelled and of no effect within thirty (30) days written notice on the other party and that the DENR Region 13 shall also be notified.

IN WITNESS WHEREOF, the parties have hereunto affixed their signatures this day of 07 MAR 2025, 2025 at CANTILAN Surigao del Sur, Mindanao, Philippines.



EDOY MABIDO
PLTP Holder/Supplier

MARIALIZA T. CUSTODIO
Buyer

Witnesses:

GAY P. RESULLAR
OIC, CENR Officer

ADELFO R. BENGAS, JR.
OIC, PENR Officer

MARITES M. OCAMPO
OIC, REGIONAL EXECUTIVE DIRECTOR



Republic of the Philippines,
Province of Surigao del Sur : S.S
Municipality/City of CANTILAN

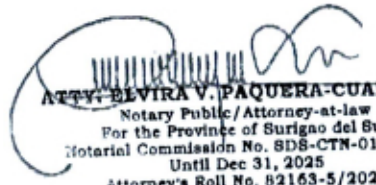
07 MAR 2025

BEFORE ME, at the Cantilan, Surigao del Sur, Philippines this 07 day of March, 2025 personally appeared Edoy S. Mabido with Community Tax Certificate No. 10788278 issued on February 10, 2025 at Pakwan, Lanuza, Surigao del Sur and Marializa T. Custodio with Community Tax Certificate No. 10786355 issued on January 08, 2025 at Brgy. Bunga, Lanuza, Surigao del Sur both known to me that the same is their free and voluntary deed.

This instrument consists of pages including this page wherein acknowledgment is written and has been signed by the parties and their instruments witness.

WITNESS MY HAND AND SEAL at the place and date first above written.

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Page No. 95
Book No. VIII
Series of 1518


ATTY. ELVIRA V. PAQUERA-CUARTERO
Notary Public/Attorney-at-law
For the Province of Surigao del Sur
Notarial Commission No. SDS-CTN-01-2024
Until Dec 31, 2025
Attorney's Roll No. 82163-5/2022
IDP No. 369991, Surigao del Sur
PTR No. 0773651, Tandag City, SDS
MCLR Compliance No.: VIII-0005335/ 4-14-2025

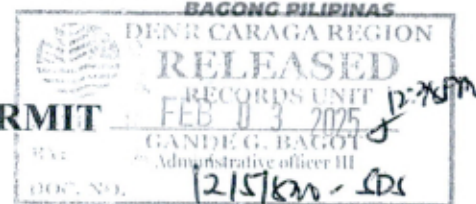




Department of Environment and Natural Resources
Kagawaran ng Kapaligiran at Likas Yaman
Caraga Region



PRIVATE LAND TIMBER PERMIT
PLTP No. RXIII-03-2025



Pursuant to Presidential Decree No. 705, as amended by Executive Order No. 277, DENR Administrative Order No. 2021-11 dated May 19, 2021 re: "Guidelines in the Processing and Issuance of Permits for the Cutting, Removal and Relocation of Naturally Growing Trees," DENR Administrative Order No. 2022-10 dated May 30, 2022, regarding the "Revised DENR Manual of Authorities on Technical Matters," and to the existing Forestry laws, rules and regulations, a Private Land Timber Permit is hereby granted to:

MR. EDOY S. MABIDO

represented by Mrs. Marializa T. Custodio

a Filipino citizen with postal address located in Barangay Pakwan, Lanuza, Surigao del Sur, to cut 451 naturally growing trees of various species with a net harvestable volume of 597.919 cubic meters.

This permit is subject to pertinent Forestry laws, rules and regulations and on the following terms and conditions, to wit:

1. Only the inventoried **four hundred fifty-one (451)** standing naturally grown trees of various species within a privately titled property covered by the *Original Certificate Title (OCT) No. CARP2015001809, Lot no. 7, under GSS-13-000152-D* located in Barangay Pakwan, Lanuza, Surigao del Sur, having a net volume of **597.919** cubic meters after deducting the 30% allowance for internal defects and harvesting inefficiency shall be authorized to be cut, as shown in the table below:

Species Groupings	Inventoried No. of trees	Net Harvestable Volume (cu.m.)
Phil. Mahogany Group	213	316.54
Manggachapui Group	1	2.14
Apitong Group	3	9.48
Nato Group	7	8.55
Furniture & Construction Hardwood	43	158.11
Premium Species	24	9.78
Lesser Use Species	122	56.04
Pulpwood and Matchwood Species	38	37.29
TOTAL	451	597.919

2. Prior to tree cutting operation, placards, or signboards with dimensions of 4 feet by 8 feet shall be installed in conspicuous places to inform the public that the tree cutting operation is authorized by the DENR. The notice of particulars shall indicate the name of the permittee, the purpose of the activities to be undertaken, and number of trees to be cut;

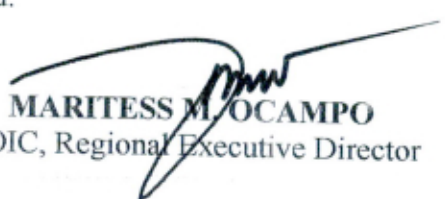


3. The tree cutting operations shall at all times be under the direct supervision of PENRO Surigao del Sur and CENRO Cantilan. The CENRO concerned shall be held administratively, civilly and criminally liable, should this Permit be used in any illegal purpose;
4. The logs and derivable wood materials to be recovered from the cut trees shall belong to the permittee, subject to payment of forest charges. The forest charges shall be based on the scaling after cutting operation. Provided that in case of transport, necessary transport permit shall be secured from the local DENR Field Office concerned;
5. The cutting operation must be conformed with the approved Environmental Compliance Certificate (ECC)/Certificate of Non-Coverage issued by the Environmental Management Bureau;
6. The permittee shall replace each tree cut with one hundred (100) seedlings or a total of forty-five thousand one hundred (45,100) seedlings strictly of indigenous species in compliance with the DENR Memorandum Order (DMO) No. 2012-02 dated November 5, 2012, re: "*Uniform Replacement for Cut and Relocated Trees*" to be turned over to the local DENR Field Office concerned in support to the National Greening Program (NGP) and climate change initiatives of the Government;
7. The chainsaw to be used in the cutting operation shall be registered pursuant to Republic Act (RA) 9175 or the "*Chainsaw Act of 2002*", and its Implementing Rules and regulations under DENR administrative Order No. 2003-24;
8. The permittee shall be required to undertake the necessary measures during and after cutting operation to mitigate the negative impacts of the said activity to the locality; and
9. Violation of any of the terms and conditions of the permit shall be sufficient ground for the termination/cancellation of the permit, subject to due process without prejudice to the imposition of appropriate penalties pursuant to existing regulations.

The Permit is effective on the date of issuance and expires within **ten (10) months** upon the receipt of CENRO Cantilan or as soon as the volume authorized herein is exhausted, whichever comes first.

Issued on FEB 03 2025 at Butuan City, Philippines.

Approved:


MARITESS M. OCAMPO
OIC, Regional Executive Director

Copy furnished:

- The Secretary
DENR, Visayas Ave., Dil., Q.C.
- The Director, Forest Management Bureau
DENR, Visayas Ave., Dil., Q.C.
- File...

